



Staffed by SLDC

**City of St. Louis Port Authority
REGULAR BOARD MEETING - REGULAR SESSION VIA ZOOM
May 14, 2026 at 9:00 a.m.**

AGENDA

In order to ensure that the Board and the public are able to connect successfully, we recommend that you call in or join via Zoom starting at 8:45 a.m. to allow time to correct any connection issues. The host will open the phone line and initiate the meeting at that time. Should you have a problem accessing the meeting, please call (314) 657-3749 for assistance. Access to the meeting can be done in two ways:

Via Zoom at:

<https://us02web.zoom.us/j/89826710248?pwd=Um5PQUlZUDZpTTJzejFhUTlUDNxUT09>

Webinar ID: 898 2671 0248 and Password: 364404

Via Phone at: (929) 205-6099 with Webinar ID: 898 2671 0248

Zoom may be accessed at www.zoom.us and instructions on its use are available at: <https://support.zoom.us/hc/en-us>

Accessibility: Persons who need accommodations relating to accessibility should contact Rojeana Helms at helmsr@stlouis-mo.gov or by phone at (314) 657-3838, or (314) 589-6000 (TTY). Prior notice of two business days is recommended for accommodation requests.

CALL TO ORDER AND ROLL CALL

APPROVAL OF MINUTES- APRIL 9, 2026 REGULAR BOARD MEETING AND APRIL 21, 2026 SPECIAL MEETING OPEN SESSION AND CLOSED SESSION.

RESOLUTION 26-PT-24: AUTHORIZING AND APPROVING AN AMENDMENT TO AGREEMENT WITH ARMSTRONG TEASDALE LLP (AT) FOR LEASE MATTERS [JAMES MORROW]

RESOLUTION 26-PT-25: RECOMMENDING THAT THE CITY OF ST. LOUIS ENTER INTO A FIVE-YEAR LEASE WITH S.I WAREHOUSING CO., INC., D/B/A ARCHWAY FLEETING & HARBOR SERVICES (ARCHWAY) FOR MOORING ADJACENT TO 4260 SOUTH 1ST STREET (IN #35) [SUSAN TAYLOR]

The official Agenda was posted on the bulletin board in the first-floor lobby of 1520 Market Street prior to 9:00 AM, May 13, 2026, and items may be withdrawn or modified during the public meeting at the discretion of the Board.

OPEN AGENDA

STATE AND FEDERAL LOBBYISTS' FY 2026Q1 REPORTS

TENTATIVE EXECUTIVE SESSION

- (A) Proceedings involving legal actions, causes of action or litigation, or confidential or privileged communications with attorneys or auditors, as provided by Section 610.021(1) RSMo. and/or Section 610.021(18) RSMo.;
- (B) Proceedings to discuss matters involving leasing, purchase or sale of real estate, as provided by Section 610.021(2) RSMo.; and/or
- (C) Proceedings regarding sealed bids and proposals and related documents, or documents related to a negotiated contract, as provided by Section 610.021(12) RSMo.

Next Board Meeting is Scheduled for THURSDAY, June 11, 2026, at 9 am

ADJOURNMENT



Staffed by SLDC

City of St. Louis Port Authority
REGULAR BOARD MEETING – REGULAR SESSION VIA ZOOM
April 9, 2026, at 9:00 a.m.
MINUTES

COMMISSIONERS

(All present via Zoom)

Matt McBride, Chairman
Alderman Shane Cohn
William Kay
Kevin Liddy
Taunia Mason
Joan Miller

STAFF PRESENT:

Deion Broxton, Laura Bryant, Salise Cobb, Roland Comfort, Stephen Davis, Charlie Hahn, Rojeana Helms, Chris Maguire, Mysia Sykes, Rob Orr, Susan Taylor, and Stephen Westbrook

COUNSEL PRESENT:

James Morrow

GUESTS:

Jacque Bardgett, Todd Baron, Bob Chapin, Michael Deloian, Cecillia Dvorak, Nick Hartzler, Tina Heimowski, Chris Johnsen, Dan Lester, Mary Beth Nassif, Paul Nasui, Darius Redmond, Mike Sarasacki, Mark Spykerman,

PUBLIC PRESENT:

Gerry Connolly, Sean Fauss, Elle Frantz, Kylee Garretson, Steph Kukuljan, Rachel Lippman, Kate Marijolic, and David Stokes

CALL TO ORDER

With a quorum being present, Chair McBride called the Regular Board Meeting to order on Thursday, April 9, 2026, at 9:00 a.m. Roll was called with all seven (7) Commissioners present [Cohn, Jackson, Kay, Liddy, Mason, Miller and McBride].

APPROVAL OF MINUTES – REGULAR BOARD MEETING

Chair McBride called for a motion to approve the Minutes of the March 12, 2026, Regular Board Meeting. Commissioner Mason moved the motion. Commissioner Liddy seconded, roll was called, and the Minutes were approved with seven (7) Commissioners present [Cohn, Jackson, Kay, Liddy, Mason, Miller and McBride] voting Aye.

PUBLIC HEARING – ON THE CREATION OF THE CITY OF ST. LOUIS PORT IMPROVEMENT DISTRICT #2

Chairman McBride called the Public Hearing to order at 9:02 am. James Morrow, counsel for the Port Authority, outlined the process for making a public comment. Mr. Gerald Connolly, a member of the public, spoke against the District, asking for a clearer explanation of why it was being reconsidered and raising transparency concerns. No other members of the public wished to speak, and the hearing concluded at 9:07 am.

RESOLUTION No. 26-PT-14 – APPROVING A PETITION FOR THE FORMATION OF CITY OF ST. LOUIS PORT IMPROVEMENT DISTRICT #2

Susan Taylor presented the Resolution to the Board. Nick Hertzler and Mike Sarasacki with the development team provided a brief overview of the Jefferson Arms project, which involves transforming the building into a 225-room hotel featuring large historic ballrooms, 235 apartments, 29,757 square feet of retail space, and an attached parking garage. Discussions covered a 25% increase in the project's original cost and ongoing efforts to find additional parking solutions. The unexpected historic conditions of the ballroom added to the renovation costs and extended the project timeline.

After further discussion, Chairman McBride called for a motion to approve Resolution No. 26-PT-14. Commissioner Mason moved to approve the motion, and Commissioner Miller seconded. Roll was called, and the motion passed with five (5) Commissioners voting Aye [Cohn, Jackson, Liddy, Miller, and McBride] and two (2) Commissioners voting Nay [Kay and Mason].

RESOLUTION No. 26-PT-15 – AUTHORIZING RESOLUTION THAT THE BOARD OF PUBLIC SERVICE APPROVE AN UP-TO-ONE-YEAR PERMIT FOR THE UNITED STATES ARMY CORPS OF ENGINEERS TO ACCESS CITY PROPERTY IN THE PORT DISTRICT TO TEST AND SAMPLE FOR CONTAMINATES AT 1 DESTREHAN ST. & 3401-3431 N. WHARF ST. AND TO TEST FOR AND REMEDIATE CERTAIN CONTAMINANTS AT 1 BRANCH ST. + 11 DOCK ST.

Susan Taylor presented the Resolution to the Board, requesting access for the Army Corps' ongoing sampling near the former Mallinckrodt Chemical Works on North Riverfront.

Chairman McBride then called for a motion to approve Resolution No. 26-PT-15. Alderman Cohn moved to approve the motion, and Commissioner Mason seconded and asked for previous roll. Chairman McBride objected to the requested previous roll. Roll was called, and the motion passed with seven (7) Commissioners [Cohn, Jackson, Kay, Liddy, Mason, Miller and McBride] voting Aye.

RESOLUTION No. 26-PT-16 – RESOLUTION STATING THE INTENT OF THE CITY OF ST. LOUIS PORT AUTHORITY TO ISSUE TAXABLE INDUSTRIAL REVENUE BONDS IN THE AGGREGATE PRINCIPAL AMOUNT OF \$38,500,000 IN FURTHERANCE OF A PROJECT FOR WINLAND FOODS, INC.

Susan Taylor and Steve Davis presented the Resolution to the Board. Todd Barron and Bob Chapman with Winland Foods explained how this will increase the plant's production and increase the employment opportunities in the area. During the discussion, Commissioner Liddy left the meeting.

Chair McBride called for a motion to approve Resolution 26-PT-16. Commissioner Mason made a motion to approve the Resolution, and Commissioner Miller seconded the motion. Roll was called, and the motion to approve Resolution 26-PT-16 passed with all six (6) Commissioners present voting Aye [Cohn, Jackson, Kay, Mason, Miller and McBride].

RESOLUTION No. 26-PT-17 – AUTHORIZING A LEASE BETWEEN THE CITY OF ST. LOUIS AND THE CITY OF ST. LOUIS PORT AUTHORITY AND AUTHORIZING A SUBLEASE TO SCF LEWIS & CLARK TERMINALS, LLC FOR THE MUNICIPAL RIVER TERMINAL, THE #5 CLINTON ST. WAREHOUSE, THE TYPER STREET GRAIN FACILITY, AND TWO VACANT PARCELS, ALL AT NEW RATES (PIN #38)

Susan Taylor, with Dan Lester of Ingram – of which SCF Lewis & Clark Terminals is a subsidiary, presented the Resolution to the Board. She explained the desire of the Port Authority and Ingram to revise the footprint of the Municipal River Terminal to include the #5 Clinton Warehouse, Tyler Street grain facility, and additional parcels of unutilized City-owned property. Such revised footprint and new lease term would facilitate upgrades to 11,0000 feet of track, the reinstatement of an access point at flood gate, new employment opportunities, and the capacity for the MRT to accommodate unit trails. She requested a twenty-five-year lease from the City and approval to sublease to SCF Lewis & Clark Terminals with updated rates and tonnage royalties. During the discussion, Commissioner Liddy returned to the meeting.

Chair McBride called for a motion to approve Resolution 26-PT-17. Commissioner Mason made a motion to approve the Resolution, and Commissioner Liddy seconded. Roll was called, and the motion to approve Resolution 26-PT-17 passed with seven (7) Commissioners present voting Aye [Cohn, Jackson, Kay, Liddy, Mason, Miller, and McBride].

RESOLUTION No. 26-PT-18 – RATIFYING A COMMUNITY PROJECT BUDGET FUNDING (CPF) REQUEST TO US CONGRESSMAN WESLEY BELL FOR THE SOUTH RIVERFRONT REDEVELOPMENT PROJECT (“PROJECT”) AND APPROVING AGREEMENTS RELATED TO RECEIVING THE FUNDS.

Susan Taylor presented the Resolution to the Board, explaining that the Grant has no matching requirements and that it would be used to fund the South Riverfront Redevelopment Project.

Chair McBride called for a motion to approve Resolution 26-PT-18. Commissioner Mason made a motion to approve the Resolution and requested previous roll, and Commissioner Liddy seconded. With there being no objections to previous roll, the motion to approve Resolution 26-PT-18 passed with seven (7) Commissioners present voting Aye [Cohn, Jackson, Kay, Liddy, Mason, Miller and McBride].

RESOLUTION No. 26-PT-19 – AUTHORIZING THE PORT AUTHORITY TO OBTAIN A LINE OF CREDIT (LOC), APPROVING THE LOC FORM OF AGREEMENT AND RELATED INSTRUMENTS, AND AUTHORIZING FURTHER ACTION TO FINANCE THIS SOUTH RIVERFRONT REDEVELOPMENT PROJECT (PROJECT)

Susan Taylor presented the Resolution to the Board. Additional funding sources for this project include \$4,000,000 in state capital improvement grants, another \$4,000,000 from state ARPA capital improvement grants, \$250,000 in Federal Funds, \$1,200,000 from Port lease revenue, and \$860,000 in upfront first-year rent from Ingram starting July 1, 2026. The remaining amount needed is \$2,100,000, which will be covered by a line of credit from Busey Bank. The discussion also covered future plans for the current space of the City’s South Refuse trash transfer station.

After further discussion, Chair McBride called for a motion to approve Resolution 26-PT-19. Commissioner Liddy moved to approve the Resolution, and Commissioner Mason seconded and requested previous roll. With there being no objections to previous roll, the motion to approve Resolution 26-PT-19 passed with seven (7) Commissioners voting Aye [Cohn, Jackson, Kay, Liddy, Mason, Miller and McBride].

RESOLUTION No. 26-PT-20 – RECOMMENDING THE PORT AUTHORITY ENTERS INTO NEGOTIATIONS WITH CISSEL-MUELLER CONSTRUCTION INC.

Susan Taylor presented the Resolution to the Board. Staff bid out construction of the new South Refuse trash transfer station as part of the South Riverfront Redevelopment Project. Construction is expected to take about a year and a half. Cissel-Mueller was the lowest responsive bidder, and the resolution authorizes staff to finalize a construction contract with Cissel-Mueller. During the discussion, Alderman Cohn left the meeting.

Chair McBride called for a motion to approve Resolution 26-PT-20. Commissioner Mason moved to approve the Resolution, and Commissioner Kay seconded. Roll was called, and the motion to approve Resolution 26-PT-20 passed unanimously with all six (6) Commissioners present voting Aye [Jackson, Kay, Liddy, Mason, Miller and McBride].

RESOLUTION No. 26-PT-21 – APPROVING AN EXCHANGE OF STATE-OWNED LAND UNDER AN ACCESS ROAD FOR AN EASEMENT GIVING THE STATE ACCESS TO ITS PROPERTY ALONG THAT ACCESS ROAD.

Susan Taylor presented the Resolution to the Board. There being no questions or discussion, Chair McBride called for a motion to approve Resolution 26-PT-21. Commissioner Mason moved to approve the Resolution and requested previous roll, and Commissioner Liddy seconded. With there being no objections to previous roll, the motion passed unanimously with all six (6) Commissioners present voting Aye [Jackson, Kay, Liddy, Mason, Miller and McBride].

RESOLUTION No. 26-PT-22 – RESOLUTION AUTHORIZING AND APPROVING THE FISCAL YEAR 2027 PORT AUTHORITY BUDGET

Charles Hahn presented the Resolution to the Board and walked the Board through the Port's financial projections and past performance.

Chair McBride then called for a motion to approve Resolution 26-PT-22. Commissioner Mason moved to approve the Resolution and requested previous roll, and Commissioner Liddy seconded. With there being no objections to previous roll, the motion passed with six (6) Commissioners present voting Aye [Jackson, Kay, Liddy, Mason, Miller and McBride], .

Lobbyist Reports – The reports were postponed until the next meeting.

OPEN AGENDA

Executive Director Stephen Westbrooks addressed the Board and introduced himself earlier in the meeting.

ADJOURNMENT

With no further business to discuss, Chair McBride asked for a motion to adjourn. Commissioner Miller made a motion to adjourn, and Commissioner Kay seconded. The meeting was adjourned at 11:17 a.m.

Respectfully submitted,

Matthew S. McBride, Chairman
MM/rh

DRAFT



Staffed by SLDC

**City of St. Louis Port Authority
SPECIAL BOARD MEETING – REGULAR SESSION VIA ZOOM**

April 21, 2026 at 8:00 a.m.

MINUTES

COMMISSIONERS PRESENT

(All present via Zoom)

Matt McBride, Chairman
Alderman Shane Cohn
James Jackson
William Kay, Jr.
Kevin Liddy
Taunia Mason

COMMISSIONERS ABSENT

Joan Miller

STAFF PRESENT:

Laura Bryant, Salise Cobb, Rojeana Helms, Chris Maguire, Rob Orr and Susan Taylor

COUNSEL PRESENT:

James Morrow

GUESTS:

Sarah Finley, Darius Redmond, Marybeth Nassif, Sean Fauss and Gerald Connolly

CALL TO ORDER

Chairman McBride called the meeting to order at 8:02 a.m. Roll was called with six (6) Commissioners present [Alderman Cohn, Commissioner Jackson, Commissioner Kay, Commissioner Liddy, Commissioner Mason and Chairman McBride].

EXECUTIVE SESSION

Chairman McBride requested a motion to move to Executive Session pursuant to Section 610.021(1) and (12). Alderman Cohn made the motion, Commissioner Jackson seconded the motion. Role was called, and the motion passed with six (6) Commissioners [Alderman Cohn, Commissioner Jackson,

Commissioner Kay, Commissioner Liddy, Commissioner Mason and Chairman McBride] voting aye. The Board moved to Executive Session at 8:04 a.m.

RETURN TO OPEN SESSION

The Board returned to Open Session at 8:39 am. Roll was called with six (6) Commissioners present [Alderman Cohn, Commissioner Jackson, Commissioner Kay, Commissioner Liddy, Commissioner Mason and Chairman McBride].

ADJOURNMENT

With no further issues to discuss, Chairman McBride requested a motion to adjourn. Alderman Cohn made the motion; Commissioner Mason seconded the motion. The meeting was adjourned at 8:40 a.m.

Stephen Westbrooks, Executive Director

Rojeana Helms, Assistant Secretary

RESOLUTION NO. 26-PT-24
PRESENTED TO THE BOARD MAY 14, 2026

TO: PORT AUTHORITY COMMISSION
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: SUSAN TAYLOR, PORT DIRECTOR

RE: AUTHORIZING AND APPROVING AN AMENDMENT TO AGREEMENT
WITH ARMSTRONG TEASDALE LLP (AT) FOR LEASE MATTERS

EXECUTIVE SUMMARY:

This Resolution authorizes and approves an amendment to the agreement for legal services between the Port Authority and AT and the expenditure of funds to engage the firm in an additional amount of up to \$15,000 for a total expenditure of \$350,000, and an increase in attorney rates to provide legal services relating to Authority leases.

BACKGROUND:

The Authority manages approximately 45 leases and Letters of Agreement along the City's 19-mile riverfront, including the one for the Municipal River Terminal (MRT). Resolution 15-PT-15 approved a \$10,000 contract with AT for lease matters, including a new lease for the MRT. The Authority continued to upgrade other leases as they hit milestones, necessitating increases to AT's contract as shown below:

Resolution 17-PT-4 amended the AT contract for an additional \$25,000; Resolution 17-PT-23 for an additional \$25,000; Resolution 18-PT-6 for an additional \$25,000; Resolution 18-PT-23 for an additional \$25,000; Resolution 19-PT-8 for an additional \$75,000; Resolution 20-PT-12 for an additional \$75,000; and Resolution 21-PT-20 for and additional \$75,000.

The current balance of AT's contract is \$335,000, of which approximately \$23,000 remains.

In 2021, the City Counselor's office added further legal support to the Authority for lease matters and other Authority business. The Authority's need to engage AT subsequently declined as in-house capacity expanded. However, due to impending deadlines controlling disposition of the City's ARPA funds and the press of other business, in-house legal capacity is handling a temporary heavy load of non-port business. AT remains available to assist the Authority with current negotiations and lease preparation, including but not limited to matters involving the Municipal River Terminal. Due to the passage of time, AT's rates have increased but remain significantly below market for the Authority. Out of an abundance of caution, staff also recommend increasing the authorized amount of AT's contract to ensure continuity of service. Staff therefore request an eighth amendment to the agreement with AT to increase the value of the agreement by \$15,000

RESOLUTION NO. 26-PT-24
PRESENTED TO THE BOARD MAY 14, 2026

and revise the AT Partner's rate to a \$450/hour discounted rate. The total contract value would be \$350,000.

REQUESTED ACTION:

Approval of this Resolution by the Port Authority Commission.

NOW, THEREFORE, BE IT RESOLVED BY THE PORT AUTHORITY BOARD OF COMMISSIONERS AS FOLLOWS:

1. The Port Authority Commission hereby approves this Resolution and authorizes an amendment to the agreement for legal services with Armstrong Teasdale LLP in substantially the form attached hereto as Exhibit A, including the expenditure of an additional amount of up to \$15,000 for total expenditure not to exceed \$350,000, with such changes as the Executive Director may approve which are consistent with the form as submitted to the Commission, the signature of the Executive Director shall be conclusive evidence of approval by the Authority.
2. The Executive Director, his designee, legal counsel, and the appropriate officers, agents, and employees of the Port Authority to take all steps necessary and to execute all documents necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the Authority.

ADOPTED this 14th day of May, 2026

CITY OF ST. LOUIS PORT AUTHORITY

By: _____

Title: _____

(SEAL)
ATTEST:

Assistant Secretary

RESOLUTION 26-PT-24 EXHIBIT A

AMENDMENT NO. 8 AGREEMENT BY AND BETWEEN THE CITY OF ST. LOUIS PORT AUTHORITY AND ARMSTRONG TEASDALE LLP

This Amendment No. 8, effective this _____ day of _____, 2026, **by** and between the **CITY OF ST. LOUIS PORT AUTHORITY (the “Authority”)**, a public body corporate and politic and having its principal place of business at 1520 Market Street, Suite 2000, St. Louis, Missouri 63103, and **ARMSTRONG TEASDALE LLP (“Armstrong”)**, a limited liability partnership under the laws of the State of Missouri and having its principal place of business at 7700 Forsyth Boulevard, Suite 1800, St. Louis, Missouri 63105.

WITNESSETH THAT:

WHEREAS, pursuant to an Agreement dated August 14, 2015 between the Authority and Armstrong, as amended, Armstrong was engaged to provide legal services in connection with issues involving various Port leases for the Authority; and

WHEREAS, the Authority is in need of continuing services related to the Port leases (hereinafter referred to as “continuing services”); and Amendment 8 was approved May 14, 2026, by the Authority by Resolution 26-PT-24.

NOW THEREFORE, the Authority and Armstrong, for the consideration and under the conditions hereinafter set forth, hereby agree as follows:

1. Scope of Continuing Services

Armstrong agrees to provide continuing services as described in the Agreement with respect to ongoing Port leases matters.

2. Compensation for Continuing Services

The compensation to be paid for continuing services under this Amendment shall be up to an additional Fifteen Thousand Dollars (\$15,000), bringing the total amount under the Agreement and this Amendment to Three Hundred Fifty Thousand Dollars (\$350,000).

Compensation shall be \$450.00 per hour for all Partners and Associates, including Of Counsel.

3. Other Terms and Conditions

Except to the extent otherwise inconsistent with the express terms hereof, all terms and conditions of the Agreement shall apply. The Agreement shall in all other respects be deemed to remain in full force and effect. The undersigned represents that he has authority to execute this Amendment on behalf of Armstrong.

IN WITNESS WHEREOF, the parties have executed this Amendment No. 8 as of the date and year first above written.

City of St. Louis Port Authority

By: Stephen Westbrooks
Title: Executive Director

Armstrong Teasdale LLP

By:
Title:

RESOLUTION NO. 26-PT-25
PRESENTED TO THE BOARD – MAY 14, 2026

TO: PORT AUTHORITY COMMISSION AND
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: SUSAN TAYLOR, PORT DIRECTOR

RE: RECOMMENDING THAT THE CITY OF ST. LOUIS ENTER INTO A FIVE-YEAR
LEASE WITH S.I. WAREHOUSING CO., INC., d/b/a ARCHWAY FLEETING &
HARBOR SERVICES (ARCHWAY) FOR MOORING ADJACENT TO 4230
SOUTH 1ST STREET (PIN #35)

EXECUTIVE SUMMARY

This 2400' mooring-only lease at 4230 South 1st Street began in 1998 with a single 25-year period. In 2024, the Port Authority negotiated a higher rate and an additional year of operations for the current lessee at this location (see Exhibit A), while redevelopment of the adjacent real property remains ongoing. This Resolution recommends a short-term lease to guarantee the lessee continued use of the mooring while redevelopment continues.

BACKGROUND

The South Riverfront Redevelopment Project (the Project) will relocate existing South Refuse operations from 4230 South 1st Street's shoreside area over the next few years to allow development of a port facility there.

The 1998-2023 lease at 4230 South 1st incorporated several concessions to Archway for its capital improvements there that resulted in a very low rate. In 2024, the Port Authority negotiated ongoing permits with Archway to allow fleeting operations to continue while redevelopment is ongoing. The new rate is \$80/foot of mooring. After the Project concludes the Port Authority will issue a Request for Proposal for both the land and the mooring.

The attached draft lease agreement allows Archway, the current mooring lessee, continued use of the mooring rights adjacent to the Project until is anticipated to be ready to go out for bid.

REQUESTED ACTION

Request approval of Resolution No. 26-PT-25 by the Port Commission.

RESOLUTION NO. 26-PT-25
PRESENTED TO THE BOARD – MAY 14, 2026

NOW, THEREFORE, BE IT RESOLVED BY THE PORT AUTHORITY BOARD OF COMMISSIONERS AS FOLLOWS:

1. The Port Authority Commission hereby approves this Resolution and recommends the City of St. Louis enter into a lease agreement with for S.I. Warehousing Co., Inc., d/b/a Archway Fleeting & Harbor Services for mooring at 4230 South 1st Street in a form substantially as shown in Exhibit B.
2. The Executive Director, his designee, legal counsel, and the appropriate officers, agents and employees of the Port Authority are authorized to take all steps necessary and to execute all documents necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the Authority.

ADOPTED this 14th day of May, 2026

THE CITY OF ST. LOUIS PORT AUTHORITY

By: _____

Title: _____

(SEAL)

ATTEST:

Assistant Secretary

EXHIBIT A



LEASE AGREEMENT

THIS LEASE AGREEMENT (“Lease”) is made and entered into as of this 1st day of June, 2026 (“Effective Date”), by and among **The City of St. Louis, Missouri**, a city and political subdivision duly organized and existing under its charter, the Constitution and laws of the State of Missouri (hereinafter “Lessor”), and **S.I. Warehousing Co., Inc.**, a Missouri corporation (hereinafter “Lessee”).

1. Subject Property. That, for and in consideration of the rents hereinafter reserved to be paid by Lessee to Lessor, and the mutual covenants and agreements herein contained, Lessor hereby grants Lessee the mooring privileges described as follows (the “Leased Premises”):

Approximately 2,400 linear feet, between a point approximately 170 feet North of Harbor Point #9A and a point approximately 376 feet South of Harbor Point # 8B.

2. Term and Option Periods. The term of this Lease (“Term”) shall commence upon the Effective Date and shall terminate on May 30, 2028. For purposes of this Lease, “Lease Year” means each successive 12-month period following the Effective Date. As used herein, “Lease Term”, “Term” and “the term of this Lease” shall have the same meaning and shall include any properly exercised and mutually agreed upon Option Period (as hereinafter defined).

Lessee and Lessor shall have the option to extend the Term of the Lease for three (3) additional renewal periods of one (1) years each (each, an “Option Period”). Lessee must give written notice to Lessor (“Option Notice”) of its desire to exercise an option to extend the Term for an Option Period at least four (4) months, but no more than six (6) months, prior to the expiration of the initial Term or any prior Option Period, as the case may be. Each Option Period may be exercised only with the mutual consent of Lessee, the City of St. Louis Port Authority (“Port Authority”), and the Board of Public Service, which consent may be withheld for any reason or for no reason at all. Lessor shall use reasonable efforts within thirty (30) days after receipt of

Lessee's Option Notice to notify Lessee in writing if Lessor will terminate the Lease at the expiration of the initial Term or current Option Period, as the case may be, or agree to extend the Term for an additional Option Period in accordance with the terms of this Lease.

3. Rent. Lessee shall pay Lessor, at the address of Lessor indicated herein (or at such other place as Lessor may designate in writing), without demand, deduction or setoff, except as expressly provided in this Lease, such Annual Base Rent, as the same may be adjusted from time to time as specifically set forth in this Lease, in equal monthly installments (the "Monthly Base Rent") in advance commencing on the Effective Date and continuing on the first (1st) day of each calendar month during the Term based upon the below Rent Schedule. Monthly Base Rent or any other payments due under this Lease (collectively, "Rent") shall be made payable to Lessor and mailed or hand delivered to 1520 Market, Street, Suite 2000, St. Louis, Missouri 63103, Attention: Controller, or to such other person or to such other place as directed from time to time by written notice to Lessee from Lessor. Rent shall be pro-rated for any partial calendar months occurring at the beginning or end of the Term. In no event shall Rent be less than the minimum rent set by ordinance.

Annual Rent	Annual Base Rent	Monthly Base Rent
Lease Year 1	\$192,000.00	\$16,000.00
Lease Year 2	\$197,760.00	\$16,480.00

4. Taxes. Lessee agrees to pay ad valorem taxes on boats, vessels, aircraft or watercraft and on operation of same that may be moored on said Leased Premises or involved in any operations within said Leased Premises, including all other owned property and equipment, and it is agreed that the Lessee will not deny the authority of the proper assessing agency to assess ad valorem taxes on said improvements. Further, Lessee agrees to pay any and all taxes, fees and

assessments due on any other aspect of Lessee's business operations or improvements within the Leased Premises.

5. Maintenance and Repair. Lessee, at its sole cost and expense, throughout the Term, shall take good care of the Leased Premises (including any improvements now or hereafter erected or installed on the Leased Premises), and shall keep the same in good order and condition and shall make and perform all maintenance thereof (including, without limitation, routine and regular maintenance) and all repairs and replacements thereto, interior and exterior, structural and nonstructural, and capital or non-capital in nature, all to the extent necessary to comply with the express provisions of this Lease. All maintenance and repair activities of Lessee under this Lease shall be performed in accordance with all laws, ordinances and regulations. In the event that structures are damaged due to misuse or negligence by Lessee's agents, licensees and invitees, then Lessee shall promptly repair such damage at Lessee's sole cost and expense. Any structural repairs shall be completed in accordance with sealed drawings by a licensed engineer and shall restore the structural integrity of the damaged component(s).

Lessee, at its sole cost and expense, shall take good care of, repair, replace and maintain the improved wharf immediately in front of the mooring area, bollards, levee/flood wall components, anchorages, chains, deadmen on or appurtenant to the Leased Premises in good order and repair, and keep all portions of the Leased Premises, including areas appurtenant thereto, in a clean and orderly condition.

Except as expressly provided in this Lease, Lessor shall not be required to furnish any services or facilities or to make any repairs, replacements or alterations in, about or to the Leased Premises or any improvements now or hereafter erected thereon. **Except as otherwise expressly**

provided in this Lease, Lessee accepts the Leased Premises in their “AS IS, WHERE IS” condition, with all faults.

6. Allowed Use. Lessee may use the Leased Premises for the purpose of fleeting barges as well as ingress and egress to the land for the purpose of installing and maintaining mooring points.

7. Other Lease Requirements. Lessee shall, at Lessee’s sole cost and expense, keep in full force and effect any and all permits required to fleet, and shall transfer any and all such permits to the City of St. Louis Port Authority upon termination of the Lease. Lessee shall provide copies of all permits to Lessor.

Lessee shall keep, operate and maintain the Leased Premises in full compliance with all federal, state and local environmental, health and/or safety laws, ordinances, rules, regulations, codes, orders, directives, guidelines, permits or permit conditions (altogether “the Regulations”) currently existing and as amended, enacted, issued or adopted in the future, except as provided below, which are applicable to the Leased Premises. Lessor will make reasonable efforts to timely communicate additions or changes to the Regulations to the Lessee so that Lessee can modify its operations accordingly. If there is a change in any, municipal, state or federal law, regulation or rule or interpretation thereof, which affects this Lease or the activities of either party under this Lease, and either party reasonably believes in good faith that the change will have a substantial adverse effect on that party’s rights or obligations under this Lease, then that party may, upon written notice, require the other party to enter into good faith negotiations to renegotiate the terms of this Lease. If the parties are unable to reach an agreement concerning the modification of this Lease within ninety (90) days after the date of the notice seeking renegotiation, then either party may terminate this Lease by written notice to the other party.

8. Surrender. At the time of surrender, Lessee shall repair any and all damage to the Leased Premises resulting from Lessee's operations, ordinary wear and tear excepted. Upon the expiration, termination, or cancellation of this Lease, the Lessee shall remove all and any vessels, boats, watercraft or other practical movable structures from the Leased Premises and mooring area, without expense to the Lessor. In the event said vessels, boats, watercraft or other practical movable structures are not removed within ninety (90) days after receipt of notice by the Lessee, the Lessor may take possession of said vessels, boats, watercrafts or other practical movable structures or may cause same to be removed at the expense of the Lessee. Upon the expiration or earlier termination of this Lease, Lessee shall quit and peacefully surrender the Premises to Lessor, and Lessor, upon or at any time after any such expiration or termination, may without further notice, enter upon and re-enter the Leased Premises and possess and repossess itself thereof, by summary proceedings, ejectment or otherwise, and may dispossess Lessee and remove Lessee and all other persons and property from the Leased Premises and may have, hold and enjoy the Leased Premises and the right to receive all rental income of and from the same. Lessee shall leave and surrender the Leased Premises to the Lessor in the same condition in which the Leased Premises was at the commencement of this Lease, except as repaired, rebuilt, restored, altered, replaced or added to as permitted or required by any provision of this Lease. Upon such surrender, Lessee shall (a) remove from the Leased Premises all property which is owned by Lessee or third parties other than the Lessor and (b) repair any damage caused by such removal. Lessee further agrees and warrants that, upon the expiration or earlier termination of this Lease, Lessee shall return the Leased Premises to the Lessor free of any and all hazardous material, infectious waste, solid waste, pollutants, and contaminants which were placed, released, discharged, disposed, and/or spilled on, into, or about the Leased Premises.

9. Improvements. Lessee agrees that any approved permanent capital improvements and facilities installed on the Leased Premises by Lessee shall become the property of Lessor, unless Lessor requests the removal of same prior to the expiration or earlier termination of this Lease. Objects, facilities and equipment that are portable or moveable are not a permanent capital improvement and will remain the property of Lessee and shall be removed upon the expiration or earlier termination of this Lease.

10. Utilities. Lessee shall pay for any utilities and services used on the Leased Premises during the Term, including all hook-ups, set up/termination charges, maintenance charges for utilities, and any storm sewer charges or other similar charges for utilities imposed by any governmental entity or utility provider, together with any taxes, penalties, surcharges or the like pertaining to the Leased Premises.

11. Destruction. If the Leased Premises or any part thereof or any appurtenance thereto is damaged or destroyed by fire, casualty or structural defects, Lessee shall promptly give written notice thereof to Lessor and shall promptly file proof of loss with the appropriate insurance company or companies. Lessee shall not make a settlement for less than the full cost of the restoration of the Leased Premises without the prior written consent of Lessor. Lessee shall restore the Leased Premises to substantially the same condition as existed immediately prior to such destruction or damage to the extent possible under then-existing applicable statutes, codes, ordinances, by-laws, or regulations in any manner affecting construction. In the event of minor damage to any part of the Leased Premises, and if such damage does not render the Leased Premises unusable for Lessee's purposes, Lessee shall promptly repair such damage at its cost. Lessee shall continue paying rent and other charges during any portion of the Lease term that Lessee is unable to occupy the Leased Premises because of any casualty or structural defect. All

insurance proceeds received or receivable as a result of any damage or destruction to the Leased Premises shall be paid directly to Lessee, who shall use such proceeds as necessary to restore the Leased Premises as described in this section.

Notwithstanding anything to the contrary contained in this section, in the event the Leased Premises are materially damaged or destroyed from any cause such that Lessee is unable to use the Leased Premises for its intended and permitted use, Lessee may, at its option, terminate this Lease as of the date of the casualty by giving written notice to Lessor within thirty (30) days after the date of such casualty. If the Lease is terminated pursuant to this paragraph, the proceeds of the casualty policy attributable to the damage or destruction of the Leased Premises shall become the property of Lessor and Lessee shall provide Lessor with the proceeds of insurance and Rent payable hereunder shall be apportioned as of the date of such casualty.

12. No Partnership. Nothing contained in this Lease shall be deemed or construed to create a partnership or joint venture of or between Lessor and Lessee, or to create any other relationship between the parties hereto other than that of Lessor and Lessee.

13. Insurance, Liability and Indemnity. Lessee, at its sole cost and expense, shall procure and maintain throughout the Term of this Lease the following insurance policies on forms and with good and solvent insurers satisfactory to Lessor:

A. Workers Compensation / Employers Liability – Worker's Compensation limits shall be statutory and coverage shall be in compliance with the laws of the applicable state and federal laws, with a Employer's Liability policy limit of USD \$2,000,000.00 each person, each occurrence and aggregate.

(1) Include United States Longshore and Harbor Workers' Compensation Act coverage for applicable employees.

- (2) Include voluntary compensation coverage.
- (3) Include occupational disease coverage.
- (4) Include maritime employers liability endorsement, including transportation, wages, maintenance and cure unless such coverage is provide by the required P&I policy.

B. Commercial General Liability - Policy limit of USD \$5,000,000.00 per occurrence and USD \$5,000,000.00 aggregate applicable to liabilities assumed hereunder and the use or occupancy of the Leased Premises by Lessee or any of Lessee's agents, employees, licensees, customer, invitees or contractors.

- (1) Include coverage for explosion, collapse, and underground hazards.
- (2) Include products hazard coverage.
- (3) Include completed operations hazard coverage.
- (4) Include broad form property damage coverage.
- (5) Blanket contractual liability coverage applicable to all liability, indemnity and hold harmless provisions assumed under this Agreement.
- (6) Unless included elsewhere, coverage shall include Marine Terminal Operators' Liability applicable to third-party vessels in Lessee's care, custody or control.
- (7) Sudden and accidental pollution coverage applicable to third party bodily injury or property damage.

C. Automobile Liability - Policy limit of USD \$2,000,000.00 combined single limit per occurrence or accident for bodily injury and property damage. Policy shall be applicable to

and cover all owned, non-owned, hired and/or rented autos for bodily injury and/or property damage.

D. Hull, Protection & Indemnity and Pollution –The following shall be applicable to all vessels operated by Lessee:

(1) Primary hull insurance subject to the terms and conditions of the American Institute Hull Clauses 1977 or its equivalent, providing coverage on all owned/operated vessels on an agreed value basis.

(2) Primary protection and indemnity insurance (P&I), including contractual liability, collision/tower's liability, and pollution buy-back endorsement subject to the terms and conditions of the P&I SP-23 (Revised 1/56) form of policy or its equivalent with limit of USD \$5,000,000.00 applicable to any one accident or occurrence. Unless provided by the Worker's Compensation coverage required herein, coverage shall further include coverage for Crew/Jones Act.

(3) Pollution insurance with limit of USD \$5,000,000.00 and conditions available through the Water Quality Insurance Syndicate or equivalent for OPA, CERCLA and other substances coverage including coverage for all scheduled vessels.

E. Excess Liability Insurance in an amount of USD \$10,000,000.00 with coverage with terms and conditions no less broad than the primary.

F. In the event Lessee handles, stores, or transports Hazardous Materials at the Leased Premises, Environmental Impairment Liability insurance in the amount of USD \$10,000,000.00 naming Lessor and the City as additional primary, non-contributing insureds.

G. Property damage insurance covering all of Lessee's improvements, including trade fixtures and personal property from time to time in, on or upon the Leased Premises, including any alterations, improvements, additions or changes made by Lessee thereto in an amount of one hundred percent (100%) of their full replacement cost from time to time during the Term. Any policy proceeds from such insurance payable for the physical damage to improvements within the Leased Premises, so long as this Lease shall remain in effect, shall be applied first for the repair, reconstruction, restoration or replacement of the improvements damaged or destroyed.

H. Where allowable by law, Lessee shall obtain from each of its insurers a waiver of subrogation on all required coverage of the Lessee in favor of Lessor and the Port Authority. With respect to the property coverage required, Lessor and the Port Authority shall be named as a loss payee as their interest may appear. No "other insurance" provision shall be applicable to Lessor by virtue of having been named loss payee under any policy of insurance and Lessee's insurance shall be primary and non-contributory with respect to Lessor. Lessee shall be responsible for payment of all deductibles, premiums, and retentions in connection with the insurance required of Lessee hereunder, and for payment for all expenditures incurred under any "sue and labor" provision under any policy. The foregoing insurance policies shall each provide that there shall be no recourse against Lessor for payment of premiums, commissions, club calls, assessments, or advances.

I. All policies referred to above shall: (i) be taken out with insurers licensed to do business in Missouri having an A.M. Best's rating of A-, Class IX, or better, or otherwise approved in advance by Lessor, such approval not to be unreasonably withheld; (ii) be non-contributing with, and shall apply only as primary and not as excess to any other insurance available to Lessor or any mortgagee of Lessor; (iii) [intentionally deleted]; and (iv) provide for thirty (30) days' prior

written notice of material changes and ten (10) days' prior written notice shall be provided in the event of cancellation due to the non-payment of premium. Lessee shall provide certificates of insurance as reasonably requested by Lessor on or before the Commencement Date and thereafter at times of renewal or changes in coverage or insurer and upon request by Lessor.

J. Lessee and all those claiming by, through or under Lessee shall store their property in, and shall occupy and use the Leased Premises and any improvements therein and appurtenances thereto, solely at their own risk, and Lessee and all those claiming by, through or under Lessee hereby released Lessor, to the full extent permitted by law, from any and all claims of every kind related to Lessee's use of the Leased Premises except those caused by Lessor's or Lessor's agents' negligence and willful misconduct, including loss of life, personal or bodily injury, damage to merchandise, equipment, fixtures or other property, or damage to business or from business interruption, arising, directly or indirectly, out of, from or on account of such occupancy or use of the Leased Premises, or resulting from any present or future condition or state of repair thereof. Lessee shall defend and indemnify Lessor, and the Port Authority, and their respective governing members, directors, officers, agents, attorneys, employees, independent contractors, and successors and assigns (collectively, "Indemnified Parties") and save Indemnified Parties harmless from and against any and all claims against Indemnified Parties arising from (a) Lessee's or of any of its agents', contractors', employees', invitees' or licensees', sub-Lessees' or other occupants' use of the Leased Premises, the conduct of its business thereon, or from any activity, work or thing done, permitted or suffered by Lessee in or about the Leased Premises, (b) the nonperformance of any covenant or agreement on Lessee's part to be performed pursuant to the terms of this Lease, (c) any act or negligence of Lessee or of any of its agents, contractors, employees, invitees or licensees, sub-Lessees or other occupants, and from and against all costs, fines, judgments,

reasonable counsel fees, expenses and liabilities incurred in any such claim or in any action or proceeding brought thereon, (d) Lessee's or of any of its agents', contractors', employees', invitees' or licensees', sub-Lessees' or other occupants failure to comply with any and all governmental laws, ordinances and regulations applicable to the condition or use of the Leased Premises or its occupancy, (e) any hazardous material activity by Lessee, its successors or assigns, or at the Leased Premises, (f) the operation of any applicable environmental law against Lessee or Leased Premises, (g) any environmental assessment, investigation, and environmental remediation expenses related to Lessee's use of the Leased Premises, (h) the violation at the Leased Premises or by Lessee of any applicable environmental law during the term of this Lease, or (i) any third party claims or suits filed or asserted. In case any action or proceeding be brought against Indemnified Parties by reason of any such claim, Lessee, upon written notice from Indemnified Parties, covenants to resist or defend at Lessee's expense such action or proceeding by counsel reasonably satisfactory to Lessor and be responsible for all reasonable and necessary costs and expenses incurred by any one or more of the Indemnified Parties in connection with any such claim. The provisions of this Section shall survive the termination of this Lease with respect to any claims or liabilities accruing prior to such termination and during the term of the Lease. Notwithstanding the foregoing, Lessee's indemnification obligations set forth above shall not apply to any claims arising from the negligence or intentional misconduct of any of the Indemnified Parties or regarding any actions occurring outside the time period of the Lease.

K. Lessee shall require all licensees, sub-Lessees or other occupants of the Leased Premises to provide insurance consistent with the terms and conditions set forth above and, upon request, furnish to Lessor reasonable satisfactory evidence that such insurance is in effect.

14. Event of Default. The occurrence of any one or more of the following events shall constitute an “Event of Default”:

A. The failure by Lessee to make any payment of Rent or other amounts owed hereunder within ten (10) business days after written notice from Lessor that said payment is due and unpaid.

B. The failure by Lessee to maintain the insurance required under this Lease, where such failure shall continue for a period of ten (10) business days after written notice hereof from Lessor to Lessee.

C. The failure by either Party to observe or perform any of the other covenants, conditions or provisions of this Lease, other than described in Sections (A) and (B) above, where such failure shall continue for a period of thirty (30) days after written notice hereof from the other Party; provided, however, that if the nature of default is such that more than thirty (30) days are reasonably required for its cure, then the defaulting Party shall not be deemed to be in default if it commenced such cure within said thirty (30) day period and thereafter diligently pursues such cure to completion (but in no event longer than ninety (90) days after the default).

D. (i) The making by Lessee of any general assignment, or general arrangement for the benefit of creditors; (ii) filing by or against Lessee of a petition to have Lessee adjudicated a bankrupt or a petition for reorganization or arrangement under any law relating to bankruptcy (unless, in the case of a petition filed against Lessee, the same is dismissed within sixty (60) days); (iii) the appointment of a trustee or receiver to take possession of substantially all of Lessee’s assets located at the Leased Premises or of Lessee’s interest in this Lease, where possession is not restored to Lessee within sixty (60) days; or (iv) the attachment, execution or other judicial seizure

of substantially all of Lessee's assets located at the Leased Premises or of Lessee's interest in this Lease, where such seizure is not discharged within sixty (60) days.

E. Excepting any acts of god, in the event that either (a) Lessee's business fails to operate for any reason for any period in excess of ninety (90) days and Lessee fails to use due diligence to resume its operations, or (b) Lessee's business fails to operate for any reason for any period in excess of one-hundred eighty (180) days regardless of Lessee's due diligence.

15. Remedies. Upon an Event of Default, the non-breaching Party shall have the following remedies, which shall not be exclusive but shall be cumulative and shall be in addition to any other remedies now or hereafter allowed by law, with or without further notice or demand:

A. Terminate Lessee's right to possession of the Leased Premises by any lawful means, without terminating this Lease, and Lessee shall immediately surrender possession of the Leased Premises to Lessor. Upon regaining possession of the Leased Premises, Lessor may re-let the same or any part thereof to any person or entity for such rent, for such period (including periods beyond the Term of this Lease), and upon such terms as Lessor, acting in good faith, deems reasonable. In connection with regaining possession of the Leased Premises and re-letting the Leased Premises (if the same are re-let), Lessor shall be entitled to recover from Lessee the reasonable cost of recovering possession of the Leased Premises, the reasonable expenses of re-letting (including necessary renovation, maintenance, repairs and alteration of the Leased Premises, and Lease commissions), reasonable attorneys' fees, and disbursements ("Lessor's Expenses"). All of Lessor's Expenses shall be charged against the rents collected on any re-letting of the Leased Premises, and if the rents collected by Lessor upon any re-letting (after deducting therefrom Lessor's Expenses) are insufficient to pay the full amount of the Rent and other amounts due from Lessee hereunder as the same become due, Lessee shall pay Lessor the amount of the

deficiency monthly on demand. If the rents collected by Lessor upon any re-letting (after deducting therefrom Lessor's Expenses) exceed the full amount of the Rent and other amounts due from Lessee hereunder, all such excess shall be retained by Lessor and Lessee shall have no interest therein, provided, however, that such excess, if any, shall be applied against any other liability of Lessee under this Lease.

B. Maintain Lessee's right to possession in which case this Lease shall continue in effect whether or not Lessee shall have abandoned the Leased Premises. In such event Lessor shall be entitled to recover Rent and any other amount due from Lessee as it becomes due hereunder.

C. Terminate this Lease, in which event Lessee shall immediately surrender possession of the Leased Premises to Lessor, and Lessor shall have the right to regain possession of the Leased Premises by any lawful means should Lessee fail to surrender the same.

D. Lessor shall be required to make commercially reasonable efforts to mitigate Lessor's damages upon the occurrence of an Event of Default.

E. If Lessor pays any sum or incurs any expense in curing the Event of Default by Lessee, Lessee shall reimburse Lessor upon demand for the amount of such payment or expense.

F. Pursue any other remedy now or hereafter available under the laws or judicial decisions of the State of Missouri.

16. Late Charge. Lessee hereby acknowledges that late payment by Lessee to Lessor of Rent and other sums due hereunder will cause Lessor to incur costs not contemplated by this Lease, the exact amount of which will be extremely difficult to ascertain. Such costs include, but are not limited to, processing and accounting charges, and late charges which may be imposed by Lessor. Accordingly, if any installment of Rent or any other sum due from Lessee shall not be received by Lessor or Lessor's designee within ten (10) days after such amount shall be due and

after Lessor notifies Lessor that payment is due and unpaid, Lessee shall pay to Lessor a late charge equal to the lesser of (i) five percent (5%) of such overdue amount, or (ii) Two Thousand Dollars (\$2,000.00). The parties hereby agree that such late charge represents a fair and reasonable estimate of the costs Lessor will incur by reason of late payment by Lessee. Acceptance of such late charge by Lessor shall in no event constitute a waiver of Lessee's default with respect to such overdue amount, nor prevent Lessor from exercising any of the other rights and remedies granted hereunder.

17. No Constructive Waiver. No waiver of any forfeiture, by acceptance of rent or otherwise, shall waive any subsequent cause of forfeiture, or breach of any condition of this Lease; nor shall any consent by Lessor to any assignment or subletting of said Leased Premises, or any part thereof, be held to waive or release any assignee or sub-Lessee from any of the foregoing conditions or covenants as against him or them; but every such assignee and sub-Lessee shall be expressly subject thereof.

18. Non-appropriation. The parties agree that Lessor, being a governmental entity, has the limitation of appropriation on its financial obligations herein.

19. Assignment. Any subpermit, transfer, sale or assignment of Lessee's rights or interests under this Lease are not permitted without the prior written approval of the Lessor, the Board of Public Service, and the Port Authority, such approval not to be unreasonably withheld. However, Lessee may assign any of its rights or obligations under this Lease to any Affiliates of Lessee without prior approval of Lessor, the Board of Public Service, and the Port Authority ("Permitted Transfer"); provided, however, that such Permitted Transfer shall not relieve Lessee of its responsibilities for performance of its obligations under this Lease. Lessee shall notify Lessor in writing of its intent to make a Permitted Transfer of this Lease to an Affiliate not less than

fourteen (14) days prior to the effective date of any such Permitted Transfer. For purposes of this Section, "Affiliate" shall mean an entity which is Controlled by, Controls, or is under common Control with Lessee. For purposes of this Section, "Control" shall mean the ownership, directly or indirectly, of at least fifty-one percent (51%) of the voting securities of, or possession of the right to vote, in the ordinary direction of its affairs, of at least fifty-one percent (51%) of the voting interest in, any person or entity.

This Lease may be canceled at the option of the Lessor, in the Lessor's sole discretion, if, at any time during the Term of this Lease, the person or persons who on the date of execution of this Lease owns or own a majority of the Lessee's voting shares of stock, ceases or cease to own a majority of such shares, except if such change in ownership is the result of transfer(s) by inheritance, or the result of a public offering pursuant to the Securities and Exchange Act of 1934, as amended, or the result of merger of the Lessee into or consolidation with another corporation.

If sale, transfer or assignment of Lessee's stock is approved, all parts of this Lease are binding on the purchaser, transferee or assignee. If the approvals described in this Section are obtained with respect to an action described in this Section, or if no such approvals are required with respect to an action described in this section, all parts of this Lease are binding on any sub-Lessee, assignee, or new or modified corporate entity.

20. Successors. Whenever the word "Lessor" is used herein it shall be construed to include the heirs, executors, administrators, successors, assigns or legal representatives of Lessor; and the word "Lessee" shall include the heirs, executors, administrators, successors, assigns or legal representatives of Lessee and the words Lessor and Lessee shall include single and plural, individual or corporation, subject always to the restrictions herein contained, as to subletting or assignment of this Lease.

21. Lessor's Access. Lessor has the right, but not the obligation, to inspect the Leased Premises at any time after twenty-four hours' notice to Lessee, except in the event of an emergency, to determine whether the Leased Premises are in the condition required under this Lease, whether Lessee is complying with its obligations under this Lease, and to evaluate all maintenance and repairs of the entire facility. Lessor and its representatives, contractors, agents and other governmental authorities and entities, may enter upon the Leased Premises at any time after twenty-four hours' notice to Lessee for the purpose of exercising any or all of the foregoing rights hereby reserved without being deemed guilty of an eviction or disturbance of Lessee's use or possession and without being liable in any manner to Lessee. Lessor assumes no obligation to enter the Leased Premises or to make any inspections thereof. Twenty-four hours' notice shall not be required in the event of an emergency. Notwithstanding the foregoing, except in the case of an emergency, any entry onto the Leased Premises by Lessor shall be conducted during normal business hours after Lessor has given Lessee at least twenty-four hours' advance notice of such desired entry and shall be conducted in a manner that minimizes interruption to Lessee's business to the extent reasonably practicable.

22. Cargo and Storage. Lessee shall be responsible for all items handled and stored on the Leased Premises, including, but not limited to, all customs duties, manifests, billing, demurrage (goods and equipment), accidents, damage to goods, overloading, special cargo needs, and relations with fleeting and other facilities. Lessee shall properly dispose of all spilled cargo, damaged equipment or any other trash. Lessee shall not store abandoned cargo or material on the Leased Premises. Lessee shall handle and dispose of all corrosive cargo or material in accordance with all laws, regulations and permits. The Lessee shall not store, or allow the storage of, any garbage or trash in the mooring area. Further, Lessee shall ensure that Lessee, Lessee's customers,

and employees and/or guests of Lessee do not throw trash or any articles or materials of any sort whatsoever into the river or onto any portion of the wharf or mooring area. Lessee shall be responsible for enforcing this prohibition. Lessee shall also be responsible for ensuring that the Leased Premises is at all times neat and free of all trash, rubble, and debris, regardless of whether or not such trash, rubble, and debris was deposited by Lessee.

No Personal Liability. No member, official, or employee of Lessor, the Port Authority, or Lessee shall be personally liable to the other party or any successor in interest or assign of the other party, in the event of any default or breach by such party, successor or assign of any of the obligations of this Lease.

24. Notices. All notices, demands, consents, approvals, certificates and other communications required by this Lease to be given by either party hereunder shall be in writing and shall be hand delivered or sent by overnight expedited delivery service (such as UPS or Fed Ex) or sent by United States first class mail, postage prepaid, addressed to the appropriate party at its address set forth below, or at such other address as such party shall have last designated by notice to the other. Notices, demands, consents, approvals, certificates and other communications shall be deemed given when delivered or three days after mailing; provided, however, that if any such notice or other communication shall also be sent electronically or by fax machine, such notice shall be deemed given at the time and on the date of electronic or machine transmittal if the sending party receives a written verification on its machines and forwards a copy thereof with its mailed or courier delivered notice or communication.

- A. In the case of Lessee, to:
S.I. Warehousing Co., Inc.
1441 Hampton Avenue
St. Louis, MO 63139
Attn: Glen T. Slay

- B. In the case of Lessor, to:
The City of St. Louis Port Authority
1520 Market, Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

With copies to:

City of St. Louis
City Counselor
City Hall
1200 Market Street, Room 314
St. Louis, Missouri 63103
Attention: City Counselor

25. Choice of Laws. This Lease shall be construed and enforced in accordance with the internal laws of the State of Missouri applicable to contracts performed wholly therein without reference to its conflict of laws principles. The parties shall comply with the City Charter and ordinances of the City, including Chapter 21 of the Revised Code of the City, and relevant Mayor's Executive Orders.

26. Attorney Fees. In any litigation or other proceeding in which a party seeks to enforce its rights under this Lease or seeks a declaration of any rights or obligations under this Lease, the prevailing party in such dispute shall be awarded its reasonably attorney fees, costs and expenses incurred in connection with such litigation or proceeding.

27. Headings. The headings of the Sections of this Lease are inserted for convenience only and shall not affect the meaning or interpretation of this Lease or any provisions hereof.

28. Representations of Lessee. Lessee hereby represents and warrants to Lessor as of the date hereof:

A. Lessee is a limited liability company duly created and existing under the laws of the State of Delaware.

B. Lessee has full power and authority to enter into this Lease and to carry out its obligations under this Lease and, by proper actions of its governing body, has been duly authorized to execute and deliver this Lease.

C. This Lease is and, when executed and delivered, will be, the legal, valid and binding obligation of Lessee, enforceable against Lessee in accordance with its terms.

D. There is no litigation or other proceedings pending or threatened against Lessee affecting the right of Lessee to execute or deliver this Lease or the ability of Lessee to comply with its obligations under this Lease.

E. Additionally, Lessee represents that Lessee has not dealt with any real estate broker, sales person, or finder in connection with this Lease, and no such broker, salesperson or finder initiated or participated in the negotiation of this Lease on behalf of Lessee, or showed the Leased Premises to Lessee, and Lessee hereby agrees to indemnify, protect, defend and hold Lessor harmless from and against any and all liabilities and claims for commissions and fees arising out of a breach of its foregoing representation.

F. Lessee has carefully and fully inspected and performed its due diligence with respect to the Leased Premises, including the physical condition, quality, quantity, state of repair of the Leased Premises and all improvements located thereon in all respects, and has reviewed all applicable laws, ordinances, rules and governmental regulations affecting the development, use, occupancy or enjoyment of the Leased Premises, and has determined that the same are satisfactory to Lessee for Lessee's use and obligations under this Lease.

29. Severability. Any clause, covenant, paragraph or provision herein if declared fully or partially invalid or unenforceable, the remaining clauses, covenants, paragraphs and provisions shall remain enforceable and valid to the fullest extent allowed by law.

30. Counterparts. This Lease may be executed in multiple counterparts, each of which shall constitute one and the same instrument.

31. Entire Agreement. The Lease, including the exhibits, includes all the covenants and agreements between the Lessor and Lessee. This Lease and its exhibits can be changed, renewed, or extended only by amendment in writing signed by Lessor and Lessee and approved by the Port Commission and Board of Public Service, and only when such amendment is authorized by an ordinance enacted for that purpose if required by law.

32. Municipal Purpose. The Lessor reserves the right to terminate, amend, or modify this Lease in the event any portion of the Leased Premises is needed for any municipal purpose, which shall include, but is not limited to, right of way, sewer, flood wall or flood wall construction or repair, improvement of the riparian land adjacent to the Leased Premises, any other necessary or reasonable municipal purposes or use, and/or economic development in the Port District as defined by the Lessor in Lessor's sole discretion.

In the event this Lease is terminated, amended, or modified under the provision of this section, Lessor shall provide not less than three (3) months' notice of such termination, amendment, or modification unless an emergency or other exigent circumstance makes such notice infeasible, in which case Lessor shall provide such notice as soon as it can practicably determine termination, amendment, or modification of this Lease is appropriate.

33. Mooring. All vessels must be moored in line parallel to the floodwall to the extent possible and all mooring activities shall be conducted only pursuant to and shall comply in all respects with all applicable permits.

No auxiliary craft shall be moored to any craft or vessel subject to this Lease except for clear and explicit emergency public safety reasons, except as expressly permitted by the Coast

Guard and Army Corps of Engineers, and except temporarily for maintenance purposes. Maintenance craft may be moored to another craft or vessel only during the actual time period when maintenance is taking place.

After notice to the Board of Public Service and the Port Authority, after submission to the Board of Public Service and the Port Authority of drawings and specifications signed and sealed by a licensed marine engineer, and after issuance of all applicable permits from all applicable City, state and federal regulatory agencies, Lessee shall have the right to install, or modify the installation or use of, deadmen and mooring cells on the bank adjacent to Lessee's mooring area and Leased Premises in accordance with said signed and sealed drawings and specifications and permits. Installations in existence on the date hereof shall be permitted to remain, but any and all modifications or replacement of such installations shall be subject to the requirements of this section.

34. No Gaming. During the term of this Lease and any extension thereof, Lessee shall be prohibited from conducting gaming activities on, within or from the Leased Premises or mooring area, or on, within or from any vessel or other facility moored within the Leased Premises or mooring area, and Lessee shall be prohibited from taking any action (including, without limitation, application for a gaming license, application for appropriate zoning classification, or any other action of any kind or nature) which is in any way related to any possible use of the mooring, docking or other rights granted to Lessee herein for gaming purposes of any kind, without the prior express written consent of the Lessor and Port Commission.

35. Equal Opportunity and Nondiscrimination Guidelines. Lessee agrees, for itself and for its successors and assigns, that Lessee shall not discriminate in any way on the basis of race, color, creed, national origin, sex, marital status, age, sexual orientation or physical handicap in the

sale, permit, rental, use or occupancy of the Leased Premises or any improvements erected or to be erected in or on the Leased Premises or any part thereof. Further, Lessee agrees, for itself and for its successors and assigns, to include covenants in each and every contract entered into by Lessee with respect to the improvement or operation of the Leased Premises to ensure such discrimination by any of Lessee's contractors is prohibited. The non-discrimination provisions embodied in this Section shall run with the land and shall be enforceable by the Port Commission, by the City, and by the United States of America, as their interests may appear. No part of this Lease Agreement, including but not limited to this section, shall preclude Lessee and/or its affiliated company from installing anchors, chains, spar barges and related equipment to establish an anchor fleet on the Leased Premises. Notwithstanding anything to the contrary in this Lease Agreement, each party hereto shall, at all times during the Term, comply with all applicable laws, regulations, or ordinances in the discharge of its respective duties or obligations specifically stated or contemplated herein.

[Signature Pages to Follow]

IN WITNESS WHEREOF, the said parties aforesaid have duly executed the foregoing instrument or caused the same to be executed the day and year first above written.

LESSOR:

The City of St. Louis

LESSEE:

S.I. Warehousing Co., Inc.

By: _____
Cara Spencer, Mayor

By: _____
Name: _____
Title: _____

By: _____
Donna Baringer, Comptroller

ATTEST:

By: _____
Amber Boykin Simms, City Register

APPROVED AS TO FORM ONLY:

By: _____
City Counselor

STATE OF MISSOURI)
) SS
CITY OF ST. LOUIS)

On this _____ day of _____, 2026, before me personally appeared Cara Spencer, to me personally known or satisfactory proven, who, being by me duly sworn did say that she is the Mayor of the City of St. Louis and that she is authorized to execute this Second Amendment on behalf of the City of St. Louis under the authority of Ordinance _____ and acknowledged said instrument to be the free act and deed of the City of St. Louis.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City and State aforesaid, the day and year first above written.

Notary Public

My Commission Expires:

STATE OF MISSOURI)
) SS
CITY OF ST. LOUIS)

On this _____ day of _____, 2026, before me personally appeared Donna Baringer, to me personally known or satisfactory proven, who, being by me duly sworn did say that she is the Comptroller of the City of St. Louis and that she is authorized to execute this Second Amendment on behalf of the City of St. Louis under the authority of Ordinance _____ and acknowledged said instrument to be the free act and deed of the City of St. Louis.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City and State aforesaid, the day and year first above written.

Notary Public

My Commission Expires:

STATE OF MISSOURI)
) SS
CITY OF ST. LOUIS)

On this ____ day of _____, 2021, before me appeared _____, to
me personally known or satisfactorily proven, who, being by me duly sworn did say that he is the
_____ of S.I. WAREHOUSING CO., INC., a Missouri corporation, and
that said instrument was signed in behalf of said corporation, by authority of its
_____; and said _____ acknowledged said
instrument to be the free act and deed of said corporation.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal in the City
and State aforesaid, the day and year first above written.

Notary Public

My Commission Expires: _____